

UNITED STATES — Business Formation Guide

RKPT TECH LTD | North American Business Hub *Verified against official government sources — September 2026*

1. Snapshot

Critical rule	No single federal incorporation system — entity formation is governed by state law
Example structure	Delaware LLC (used here as the illustrative model)
Government filing fee	US\$110 (Delaware Certificate of Formation)
Annual state tax	US\$300 for tax year 2025 (due 1 June 2026); US\$400 for tax year 2026 (due 1 June 2027)
Typical processing	Several weeks (standard); expedited options available

Important: the appropriate state depends on where the company will actually operate, where the owners are located, and tax/business considerations — Delaware should never be recommended purely because it is popular.

2. Recommended Structure (Delaware LLC example)

LLC (Limited Liability Company) is common for closely held international businesses. A **Corporation** (C-Corp/S-Corp) is the alternative, typically preferred where investors/equity fundraising is planned.

3. Company Formation — Step by Step

1. **Choose the state** — assess where the company operates, where owners/employees are located, and tax considerations (Delaware is only one option)
 2. **Choose entity type** — LLC or Corporation
 3. **Check name availability** against the state's naming requirements
 4. **Appoint a registered agent** with a physical street address in the formation state (mandatory)
 5. **File the Certificate of Formation** with the state (Delaware Division of Corporations for a Delaware LLC)
 6. **Prepare an Operating Agreement** (not filed with the state, but essential for ownership, management, profit distribution and exit terms)
 7. **Apply for an EIN** with the IRS (free directly from the IRS)
 8. **Determine federal tax classification** (disregarded entity, partnership, or corporation)
 9. **Assess state tax and foreign-qualification obligations** if operating in a state other than the formation state
 10. **Open a US business bank account** (separate process, bank's own KYC)
 11. **Assess foreign-owned reporting obligations** (Form 5472 / pro forma Form 1120, where applicable)
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4. Documents & Information Required

- Proposed LLC/company name
 - Registered agent details (Delaware address)
 - EIN application — **Form SS-4**: a foreign responsible party without an SSN/ITIN enters "Foreign" on line 7b; fax processing ~4–7 business days, mail processing ~4–6 weeks
 - Operating Agreement (member/manager structure, ownership, voting, distributions)
 - Passport, residential address and business details for banking
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5. Costs (Government fees — separated from other costs)

Item	Cost
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Delaware Certificate of Formation (LLC)	US\$110
Certified copy (optional)	+US\$50
Name reservation (optional)	US\$75
Annual Delaware LLC Tax	US\$300 for tax year 2025 (due 1 June 2026); US\$400 for tax year 2026 (due 1 June 2027) — flat tax regardless of revenue
EIN (IRS)	No government application fee
Registered agent (commercial)	~US\$50–300/year
Expedited processing	Next-day ~US\$50–100; Same-day ~US\$100–200; 2-hour US\$500; 1-hour US\$1,000 (all additional to the standard filing fee)

Indicative first-year budget: approximately **US\$500–US\$1,500+**, before accounting/tax work, banking support, out-of-state qualification, licences and specialist legal work. Foreign-owned structures typically cost more.

6. Timeframe

Stage	Indicative time
Standard Delaware processing	Several weeks (commonly cited as 10–15 business days up to 3–5 weeks, depending on state workload)
Expedited options	Next-day, same-day, 2-hour, 1-hour (extra cost)
EIN	4–7 business days (fax) to 4–6 weeks (mail) for non-US applicants
Banking	Separate process, timing varies
Full operational setup	~1–6+ weeks

7. Tax & Compliance

Item	Rate
Federal corporate tax (if taxed as a corporation)	21%
State corporate tax	0%–11.5% depending on state
FICA (employer)	7.65% (6.2% Social Security + 1.45% Medicare)
Federal minimum wage	US\$7.25/hour (many states set higher rates)

Foreign-owned LLC reporting: a foreign-owned US disregarded entity may need to file a **pro forma Form 1120 with Form 5472** attached when reportable transactions occur. Deadline: 15 April (calendar year). Penalty for non-filing: **US\$25,000**.

8. Important Information

- **Beneficial Ownership Information (BOI) reporting has been permanently removed for US-formed entities.** Under a FinCEN final rule effective **14 August 2026**, all domestic (US-created) entities and their US-person beneficial owners are **permanently exempt** from BOI reporting under the Corporate Transparency Act. Only certain **foreign entities** registered to do business in the US remain within the reporting framework. (The underlying CTA statute has not been repealed, so this position could change under future rulemaking — but it is current and permanent as of this writing.)
- **Delaware is not automatically the right state.** If the business actually operates in another state, the Delaware entity will likely need to register there as a **foreign entity**, creating additional state filings and tax obligations.
- **Immigration is separate from incorporation.** The **E-2 Treaty Investor Visa** is available only to nationals of countries with a qualifying treaty with the US, requires a substantial investment (typically US\$100,000+), and requires the investor to own at least 50% of the business. It grants an initial 2-year period, renewable indefinitely, but does **not** itself lead to a Green Card.
- Bank account approval is entirely separate from company formation and subject to the bank's own compliance review.

Disclaimer: Fees, thresholds and requirements change and should be reconfirmed at corp.delaware.gov, irs.gov or fincen.gov before reliance. This is general information, not legal, tax or immigration advice.

9. Official Sources (checked September 2026)

- Delaware Division of Corporations — <https://corp.delaware.gov>
- Internal Revenue Service (IRS) — <https://www.irs.gov>
- FinCEN (BOI reporting) — <https://www.fincen.gov/boi>
- USCIS (immigration) — <https://www.uscis.gov>